

A Glimpse at the Major Shi'a Seminaries part 1



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This article focuses primarily on the Islamic seminaries of Basra, Baghdad, and Najaf. The Seminary of Basra was known for its major role in the Science of Narration ('Ilm al-Hadith); the Seminary of Baghdad was recognized as the center of scholarly discussions as well as bringing about new advancements in principles of jurisprudence, theology, deductive reasoning (istidlal) and independent reasoning (ijtihad); and the Seminary of Najaf was one of the most important institutions of academics and ijtihad in the history of Shi'a academia.

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A Glimpse at the Major Shi'a Seminaries part 1

Rasoul Imani Khoshku

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Abstract

The previous articles in this series touched upon the subjects of *fiqh* and *usul of fiqh* – with a glance into its history and sources – as well as Hadith studies, Qur'anic sciences, the Science of Exegesis, and the Science of Ethics. The next few parts give a glimpse into the historical origins of some of the most important religious seminaries in the Shi'a world. Islamic seminaries are the most affective institution in propagating the teachings of the Qur'an and the Ahlul Bayt, and have moreover triggered a unique

culture in the scientific, social, and even political spheres. One significant role of seminaries was the rise of knowledgeable and pious Shi'a scholars who pursued *ijtihad* with the use of the Qur'an, sunna, and reason to respond to legislative needs and guide the Muslim community with their contemporary issues.

This part focuses primarily on the Islamic seminaries of Basra, Baghdad, and Najaf. The Seminary of Basra was known for its major role in the Science of Narration (*'Ilm al-Hadith*); the Seminary of Baghdad was recognized as the center of scholarly discussions as well as bringing about new advancements in principles of jurisprudence, theology, deductive reasoning (*istidlal*) and independent reasoning (*ijtihad*); and the Seminary of Najaf was one of the most important institutions of academics and *ijtihad* in the history of Shi'a academia.

Introduction

Throughout Shi'a history, Islamic seminaries have been the most stable and affective societal institutions. Three issues, that is, learning, developing and publishing authentic Islamic teachings that have been manifested through the Holy Book and the teachings of the Holy Prophet of Islam (s) and his rightful successors requires the establishment of an organized and systematic institution that pursues these goals. In pursuit of these goals and in response to this calling from the Almighty God:

"...But why should not there go forth a group from each of their sections to become learned in religion, and to warn their people when they return to them,... (9: 122),"

a group of people have been steadfast against all hardships and have washed their hands of all worldly and materialistic affairs in the quest for gaining religious knowledge and spreading it. Initially they made great efforts to collect the sayings of the Infallibles, and with the formation of study circles, they pondered and reflected on them to gain access to – and comprehend – the underlying secrets of the Divine Book. Eventually, they taught and published their works as a form of invitation to the faith and through this, the first seminaries were established in various geographical locations.

In the Arabic language '*hawzah*' means 'area', 'complex,' and 'central location', and in a more specific terminology amongst the Shi'a, it refers to a center similar to a university for pursuing Islamic education, or for learning Islamic sciences. Having access to valuable teachings from the Prophet and his family, a unique culture has been left behind in the scientific, social, and even political fields. [1](#)

During the time of the infallible Imams and specifically during the time of Imam Baqir and Imam Sadiq, the first Islamic seminaries and study circles were organized under the supervision of the holy Imams. Over a thousand students from the Shi'a school of thought and other sects participated in the classes held by the two Imams. Soon afterwards, each student became prominent in various sciences, such as transmitted knowledge (*'ulum naqli*), intellectual knowledge (*'ulum aqli*), and natural sciences (*'ulum tabi'i*).

With the inception of the twelfth Imam's occultation, that which held the highest priority was gathering narrations and protecting the legacy that was left behind by the Infallible Imams for those seeking the pure teaching of Islam. For this reason, the study of prophetic narrations held a great value. Shi'a scholars traveled to various regions, and after hearing narrations from their original sources, they presented authentic collections of narration, the most significant of them being *The Four Books of the Shi'a*.

At the beginning of the major occultation, the twelfth Imam's priority was to assign a vicegerent with the three characteristics of being scholarly, righteous, and holding the guardianship of the Imams as his model. This brought a very critical and heavy responsibility to the attention of Shi'a scholars and seminaries; it led them to pursue *ijtihad* with the use of key religious sources – the Qur'an, Sunna, and reason – to respond to legislative (*shar'i*) needs and to guide the community (*ummah*) with the existing issues of their time. The rise of great scholars, who were prominent in their level knowledge and God-consciousness (*taqwa*), was an important operation of the seminaries during the time of occultation and throughout their history.

Now after the passing of almost fourteen centuries from the beginning of constructing the first seminaries, there currently exists various active institutions all over the Shi'a world. Throughout history, with the training of open-minded individuals who are aware of their time and have a broad and expanded understanding of the pure gnostic knowledge of the family of the Prophet, they have been able to satisfy the religious and scientific needs of the followers of Islam. They have also been able to introduce the Shi'a faith to the world as an authentic viewpoint in Islam and as one of the sects that holds remarkable views in various religious sciences such as jurisprudence (*fiqh*), philosophy (*falsafah*), theology (*kalam*), and exegesis (*tafsir*).

This section expounds on some of the most prominent Shi'a seminaries most influential in the growth of the Shi'a sect and in the training of the greatest Shi'a scholars.

Although citing the number of active scholar-training seminaries during the course of history is beyond the constraints of this paper, only some of the most well-known and influential of them will be mentioned. We refer those who are interested to research in this area to more comprehensive works.[2](#)

1. Islamic Seminary of Basra

The Islamic seminary of Basra is one of the oldest publication centers of Shi'a theology in Iraq and is cited as the major seminary in the science of Prophetic Narration (*Ilm al-Hadith*).

Basra is a city in Iraq built after the conquest of the Hira region during the Islamic era in the year 15 A.H. Up until the year 36 A.H. – the time when the Battle of the Camel took place – the people of this city were mainly Uthmani. However, after the Battle of the Camel and Imam Ali's victory in that war, the Imam appointed Ibn Abbas as the Governor of Basra and Abu al-Aswad al-Du'ali as the city judge.

Due to the hard work of these two well-known figures of virtue and courtesy, and the people of Basra became more acquainted with the biography of Imam Ali that they started to lean towards Shi'ism. Ibn Abbas would spend all day at the main masjid teaching the Holy Qur'an, Islamic Jurisprudence (*fiqh*), and Islamic commandments (*ahkam*), and when he would leave Basra to see Imam Ali and to take part in the battles of the Imam, he would assign Abu al-Aswad al-Du'ali as his deputy in Basra.^{[3](#)}

After the martyrdom of Imam Ali, the devotion of the people of Basra to the Imams continued; they were eager to understand the presence of the Imams and convey their narrations. This devotion was a desire beyond explanation. It led the people to gather many companions (*sahabi*) and narrators (*muhaddith*) which then formed into the seminaries and centers for publishing narrations from the Prophet and the infallible Imams.

It was the formation of these institutes that led narrators from other cities to travel to Basra to hear narrations from the Prophet through his companions, and through this they created an educational atmosphere in the city.^{[4](#) [5](#)}

The growth flow in Basra leaned towards the Shi'a sect in such a way that taking into consideration the number of narrators during the time of Imam Baqir, one could claim that during the second century Hijri calendar, Basra became a Shi'a- populated city.^{[6](#)}

After the major occultation of the twelfth Imam, Basra continued to be the center where narrators gathered and where the devotees of the Infallibles traveled to and settled in pursuit of learning the Ahlul Bayt's message.

The Islamic seminary of Basra's outstanding status in the science of narration, its geographical location of being situated on the route to Mecca, and the path the pilgrims take to The Sacred House (*Bayt al-Haram*)^{[7](#)} was a great opportunity for Islamic scholars to enter the city and assist with issues regarding science and narration.

Moreover, books related to great Shi'a scholars refer to numerous scholars who resided in this city from the fourth to the eighth century Hijri.^{[8](#)} Some of the great narrators of the fourth century are: Abdul Aziz bin Yahya bin Saeed Basari, Muhammad bin Ibrahim Ishaq, Sharif Abu Talib Mudhaffar Basari, and Muhammad bin Omar bin Ali Basari, all of whom were teachers (*mashayekh*) of Shaykh Saduq in which he narrated hadith from. This movement continued in the next few centuries, although they did experience periods where the Islamic seminaries of Basra experienced relative declines in the branch of narration.

As a witness to this matter, we can look at Aghabozorg Tehrani's report. He was a narrator residing in Basra from the fourth to the eighth century Hijri. In the fifth century, he reports nine Shi'a students in Basra, where their numbers drop to five people in the sixth century and in the seventh century it falls once again to three people. In the eighth century he only reports two Shi'a students, and in the ninth century he does not mention any Shi'a scholar at all. However, in the tenth century he introduces an

individual named Muhammad Tulani; in the eleventh century the number of scholars in this city reaches six people, which it seems to have relocated to Basra from other seminaries, such as Ahsa; and in the twelfth century Hijri, he recounts five Shi'a scholars, where some moved from Bahrain to Basra.⁹

2. The Islamic Seminary of Baghdad

The city of Baghdad – which was the center of caliphate during the rule of the Abbasids – was the most important center of gathering and interchange amongst the dominant sects of Islam; it was also the center where debates and the exchange of ideas amongst their great scholars in various topics – primarily in issues regarding theology – took place.

The presence of the Shi'a Imams in Baghdad and in Iraq, after Imam Sadiq, became a means for Shia scholars, jurists, theologians, and narrators to learn and train under the supervision of the infallible Imams. They later were able to debate with other religious scholars and use the intellectual environment of the city to defend the true Shi'a beliefs in various theological issues and to promote pure knowledge of the Ahl-ul-Bayt and the Prophet. The extent of academic work carried out by the Imamiah scholars was to such an extent that some researchers have recounted the number of students of Imam Kadhim and his narrators in Baghdad to reach over six hundred people.¹⁰

After the passing of the era of the Imams' presence and the approach of the minor occultation of Imam Mahdi, the city of Baghdad experienced a new dynamic time period, and that was due to the presence of The Four Deputies of the Imam, namely Uthman ibn Sa'id al-Asadi, Abu Jafar Muhammad ibn Uthman, Abul Qasim Husayn ibn Ruh al-Nawbakhti, and Abul Hasan Ali ibn Muhammad al-Samarri. With the use of religious dissimulation (*taqiyya*) and through direct guidance and instructions from the Imam, these pious and well-known scholars sought to protect the Shi'a entity and become the intellectual leader of the Shi'a people. By responding to the religious misconceptions and receiving religious taxes, they turned Baghdad into the biggest Shi'a center in the world.

Another period of academic growth of the city of Baghdad and the Islamic seminaries was simultaneous with the major occultation of the twelfth Imam. Some of the important events of this period were the political upheavals and the coming to power of the Shi'a Buyids (*Al al-Buye*)¹¹ in Iran and Iraq; with proving the grounds for theological discussions, it created change in the prevailing atmosphere upon the Shi'a seminaries after the time of Imam Askari, which were engaged in gathering narrations and were rigorous in reaching a surface level understanding.

It also provided the means for theological discussion revolving around ideological issues to be prepared for in the Islamic seminaries of Baghdad. It was in such an atmosphere that great Shi'a personalities such as Shaykh Mufid, Sayyid Radi, and Sharif Murtadha with reviving the intellect as a source in the acquisition of Islamic teachings, on one hand were to guide the Ja'fari Jurisprudence towards comparative and demonstrative jurisprudence (*fiqh istidlali*) and *ijtihad*; on the other hand, with addressing intellectual issues, they revised the Shi'a theological viewpoint in regards to ideological topics

under scrutiny at the time. In what follows, we will consider the biographies of two great scholars of the seminary of Baghdad, namely Shaykh Mufid and Sayyid Murtadha.

Shaykh Mufid (336–413 A.H.) was one of the great scholars and prominent theologians of the fourth and fifth century Hijri. He taught renowned scholars such as Sayyid Murtadha, Sayyid Radi, and Shaykh Tusi. Ibn Imad Hanbali, a renowned Islamic historian, in regards to the events that took place in 413 A.H., writes: During these years Mufid passed away. He was one of the great Shi'a scholars who published many books and writings. He was also a leader of the people..."¹²

Likewise, Ibn Abi Tayy states in The History of Shi'a, "Mufid was the greatest amongst the well-known Shi'a scholars and is their representative. He was wise in the fields of theology, jurisprudence, and mentoring debates and during the Buyid Dynasty he would debate the supporters of various vocations and beliefs with a certain aura of dignity and grandeur; he also assisted the less fortunate on multiple occasions. His humility and reverence was great, his prayers and fasts numerous; he wore clean and pleasant clothes; well-known people such as Azad-ud-Daulah Dilami – the governing authority of the Buyids – would visit Shaykh Mufid on numerous occasions. He lived for 76 years and wrote over two hundred books and dissertations (*risalah*). In the month of Ramadhan, year 413 A.H., he passed away and eighty thousand people participated in his funeral."¹³

In addition to bringing new advancements in principles of jurisprudence (*usul*) and theology, Shaykh Mufid also expanded in the area of jurisprudence and gave rise to deductive reasoning (*istidlal*) and *ijtihad* and with not being satisfied with just the external meaning of narrations. He benefited from thinking freely and having a systematic understanding and logical interpretation of the narrations. In the field of political jurisprudence (*fiqh al-siyasi*), through writing books and academic debates, Shaykh Mufid clarified the status of leadership (*imamah*) in political philosophy in Islam and the idea that the Shi'a Imams and their deputies must be the ones responsible for governing and leading the Islamic society. The books *Awa'il al-Maqalat* and *Tashih I'tiqadat al-Imamiyyah* in the science of theology, *al-Muqni'ah* in the field of jurisprudence, and the books *al-Irshad*, *Fusul al-Mukhtarah*, and *al-Amali* are amongst some of his works.

Abul Ghasem Ali bin Husayn Musawi, popularly known as, Sayyid Murtadha and entitled as, 'Allam al-Huda,' was another great Shi'a scholar of the Islamic seminaries in Baghdad, who was Shaykh Mufid¹⁴'s student and Shaykh Tusi's teacher. He was born in Rajab in 355 A.H. in Karkh area of Baghdad. Sayyid Murtadha's financial capabilities enabled him to arrange the seminarians' financial conditions while spending all of his time in lectures, discussions, and composing. He set a certain monthly wage for every student in accordance with his academic activities and research, and set all the interests of a village that was under his management to provide paper for the scholars; he did so with an inalienable religious endowment (*waqf*).

Sayyid Murtadha had a unique accomplishment in the science of narration and rational sciences and in jurisprudence, principles of jurisprudence, theology, narration and exegesis, literature, poetry, and

terminology. He owned written works, which include *al-Masa'el al-Naseriyah* in jurisprudence, *al-Dhuri'ah fi Usul al-Fiqh*, *al-Shafi fi al-Imamah*, *al-Mukhalas fi Usul al-Deen*, and *al-Dhakhirah fi Ilm al-Kalam wa al-Intesar fi ma Anfardat bihi al-Imamiyah*.

Another key action Sayyid Murtadha took to provide for the academic needs of those who travelled to Baghdad from various parts of the world and joined his seminary, was that he dedicated a part of his house that he was residing in for the students' classes and discussion circles, popularly known as, "*Dar al-Ilm*." He also left his personal library, which had over eighty thousand books that were bought with his personal funding, at the disposal of the seminarians.

The Islamic Seminary of Baghdad and The Four Books of the Shi'a

Amongst the feasible blessings of the Islamic seminaries of Baghdad was its role in writing and creating the Four Books of the Shi'a, namely: *Kitab al-Kafi*, *Man la Yahduruhu al-Faqih*, *Tahdhib al-Ahkam*, and *al-Istibsar*. All of them replaced the valuable series, *Usul al-Arba'ma'ah*¹⁵ in gathering narrations from the Infallibles and it overcame the scholars' and mujtahids' need in methods of deducing Islamic commandments.

The collection *al-Kafi* was the deceased Muhammad bin Ya'qub Kulayni Razi's¹⁶ work, published in Baghdad after twenty years of research, examination, and traveling to various Shi'a populated cities while gathering authentic narrations. The late Kulayni who spent his earlier years in his birthplace – in the suburbs of Rey – initially moved to Qum to seek Islamic knowledge.

Afterwards, he travelled to the seminaries of Nishabur, Kufa, and Baghdad. Throughout these trips, along with meeting well-known Shi'a narrators and great narrators of the infallible imams, he gathered parts of the chapter of jurisprudence and narration. After migrating to Baghdad, he properly organized his work and wrote the collection, *al-Kafi*. *al-Kafi* is composed of two volumes: *Usul al-Kafi* (theology), five volumes of *Furu al-Kafi* (jurisprudence), and one volume of *Rawdat al-Kafi* (various topics). In total, it comprises 16,199 narrations which are from the Prophet and the infallible Imams.

The second book from *The Four Books of the Shi'a* is *Man la Yahduruhu al-Faqih*, written as result of the efforts of the renowned scholar, Abu Ja'far Muhammad bin Ali bin Babiwayh Qummi¹⁷, also known as Shaykh Saduq. Shaykh Saduq, who had a history of travelling and a residing at the seminary in Rey, Nishabur, Khorasan, and Bukhara, entered the Islamic seminary of Baghdad in 355 A.H. where he taught and trained the students. Shaykh Mufid is of those who participated in his lecture sessions. After some time, he traveled to Balkh, and there through the request of one of Imam Kadhim's children, he wrote a book on jurisprudence that clarified the religious duties (*shar'i*) of the Muslims in regards to jurisprudence and various religious laws. Similar to Razi's book on medicine, *Man la Yahduruhu al-Tabib*, he named his book on jurisprudence *Man la Yahduruhu al-Faqih*.¹⁸

This book comprises 5,963 valuable narrations from the Imams. Even though – according to Shaykh

Saduq's own statement – he essentially quoted the writers opinions and rulings¹⁹, considering the credibility of the narrations, it is one the most reliable books of narration and has been used as a source by scholars and mujtahids all throughout the history of Islamic jurisprudence.²⁰

Tahdhib al-Ahkam and *al-Istibsar* are the third and fourth books from the Four Books of Shi'a and have been written by Abu Ja'far Muhammad bin Hasan bin Ali Tusi²¹ predominantly known as Shaykh Tusi. Shaykh Tusi migrated from Toos to Iraq in the year 408 A.H. when he was 23 years old. He participated in Shaykh Mufid's classes in Baghdad and after a short period of time reached the level of *ijtihad* and in that young age published the book *Tahdhib al-Ahkam* which was an explanation to Shaykh Mufid's book on jurisprudence. The book *Tahdhib* is comprised of 13,590 narrations which are presented in 23 jurisprudential books and 393 chapters.

Shaykh Tusi's second famous work is *al-Istibsar*, which was issued after *Tahdhib al-Ahkam*. In composing this book, he made use of the two biggest libraries at the time in Baghdad, meaning Sayyid Razi's library and Abu Nasr Shabur's library. In the introduction of *Tahdhib*, he mentioned the presence of resentment and the existing differences in the Shi'a narrations that triggered outrage from opposing parties; since he believed that resolving differences was crucial, he introduced this issue using a practical approach in *al-Istibsar*²². It was through this that *al-Istibsar* became the first book of narrations that dealt with resolving differences in narrations.

In the mid-fifth century Hijri, the most unfortunate, bitter, and regrettable event in the history of Baghdadi seminaries occurred which resulted in the closing of the seminary. Tuqrol Bayk Saljuqi's attack on Baghdad and the seizing of the city in the year 447 A.H. led to not only the genocide of the Shi'a people, but also the burning of the biggest libraries in Baghdad such as the libraries of Sayyid Murtadha, Shaykh Tusi, Abu Nasr Shabur, Bahaud Dawla Dilami's vizier which in 381 A.H. in the Shi'a populated area of Karkh was built as The House of Wisdom (*Bayt al-Hikmah*). Afterwards, the great scholars of Baghdad, including Shaykh Tusi, moved to neighboring cities.

3. Islamic Seminary of Najaf

The seminary of Najaf is by far one of the most important institutions of academics and *ijtihad* in the history of academia and Shi'a culture and has played an undeniable role in leading political change in various historical turns throughout Shi'a history. For a long period of time, this seminary was amongst the most important Shi'a seminaries and because of its extensive history and the presence of well-known scholars, and it continued to be the center of focus and assembly of great scholars and virtuous figures.

According to historical reports, the basis for founding the seminary of Najaf was Shaykh al-Taifah Shaykh Tusi who relocated from the city of Baghdad in the year 448 A.H. to this city after the attack of the Saljuqs. Ibn Juzi writes in regards to the attacks made on Shaykh Tusi's house in Baghdad that a group of the Ahulul Sunnah attacked Abu Ja'far Tusi's house in Karkh and burnt his books, notebooks,

his pulpit used when teaching, and other belongings.[23](#)

Even though this city was the residence of several Shi'a scholars and narrators before Shaykh Tusi's relocation to Najaf, it was with his arrival and the constitution of the Islamic seminary that Najaf became the center of Shi'a jurisprudence and an institute for educating and training great Shi'a scholars. It became a focal point where seminarians and researchers in Islamic sciences turned to, and under the supervision of Shaykh Tusi, were able to train and teach students various religious sciences such as jurisprudence and theology.

After 12 years of his fruitful presence in Najaf, Shaykh al-Tusi passed away in Najaf in 460 A.H.. After him, the leadership of Shi'a and the management of the seminaries which he had founded were passed on to his son, Shaykh Abu Ali Tusi, and afterwards to his grandson Abu Nasr Muhammad bin Abi Ali al-Hasan bin Abi Ja'far Muhammad bin al-Hasan al-Tusi.

The Time of Recession

The seminary of Najaf experienced a recession and relative decline from the sixth until the ninth century Hijra. Some of its reasons could be related to the expansion of the Islamic seminary of Karbala and Hillah. The academic activities and group study circles executed by great scholars such as Ahmad bin Ali Najashi, Abi Hamza Tusi, Sayyid Fakhar Musawi Haeri, Ali bin Tawus, Shams-ud Din Muhammad bin Makki, (*Shahid Awwal*) and ibn Khazin Haeri in the seminary of Karbala were important in training students in religious studies. On another hand, with the spread of the House of Knowledge (*buyut 'ilmiyyah*) of Aal Idris, Aal Shaykh Waram, Aal Fahad, Aal Tawus in the city of Hillah, the Islamic seminaries of Najaf became increasingly marginalized.

Flourishing Once Again

The recession period of the Islamic seminary of Najaf continued until the ninth century Hijri. During this time, with the appearance of great figures such as Fadhil Miqdad[24](#) and Muqaddas Ardebili[25](#) it was rejuvenated and those who sought Islamic knowledge from other areas turned to this city. The features of this time period include the spread of the science of jurisprudence, comparative and demonstrative jurisprudence, and composing valuable books like Ma'alim al-Din a work of Hasan bin Zaid al-Din.[26](#)

In this period along with jurisprudence and principles of jurisprudence, sciences like logic, Verses of Legislature (*Ayat al-Ahkam*), exegesis, theology, and biographical evaluation (*rijaal*) started to spread and as a result, treasurable books were written in the fields.[27](#)

The eleventh century Hijri can be viewed as the new era in the history of seminaries in Najaf. The growth and activities of scholars that were present in Najaf and were under the radar were theological discussion and the method of *ijtihad*, which were of the most pronounced features of the Najaf seminaries.

This continued until the migration of Waheed Behbahani from Iran to Iraq in the twelfth century and created a certain academic excitement in the seminary of Najaf. Of the renowned figures of this time is Sayyid Muhammad Mahdi Bahrul-Ulum,²⁸ a student of Waheed Behbahani and a splendid figure in the Shi'a world who had an extensive amount of knowledge and had travelled the different stages of a peripatetic journey towards God (*sayr wa sulook*); he was indeed respected amongst the Shi'a scholars of that time.

Graduates of the Islamic Seminary of Najaf

Because of its historical background, its unique academic dynamic, and the presence of sessions run by the most well-known and sought after scholars, the seminaries of Najaf were fostered by great scholars throughout history, all of whom have shined in Shi'a academia and *ijtihad*. Indeed, they have been the source of blessing in terms of the expanding of the Shi'a seminaries in different areas. Through studying the biographies and profiles of the founders of Shi'a seminaries in various areas, as well as the socially and politically influential personalities in Shi'a history, it is clear that participating in the Najaf seminaries and making use of its academic and spiritual merits is a common factor amongst its participants. In what follows are a few spiritual and knowledgeable personalities whom were present in this seminary:

- Ibn Idris Hilli, the founder and leader of the Islamic seminary of Hillah;
- Mirza Shirazi, who issued boycotting the use of tobacco and the leader of the Islamic seminary of Samarra;
- Hajj Muhammad Ibrahim Kalbasi and Sayyid Muhammad Baqir Shaf'i the two leaders of the Islamic seminary of Isfahan;
- Hajj Shaykh Abdul Karim Haeri Yazdi, founder of the Islamic seminary of Qum,
- Mowla Ahmad bin Muhammad Ardebili, known as "Muqaddas Ardebili", a well-known scholar in the Shia world;
- Shaykh Ja'far Kashif al-Ghita', leader and great Shi'a authority (*marja'*);
- Shaykh Muhammad Hasan Najafi, great jurist (*faqih*) and author of *Jawahir al-Kalam*;
- Shaykh A'adham Murtadha Ansari, the undisputable scholar in jurisprudence and the principles of jurisprudence;
- Mulla Muhammad Kadhim Khorasani, author of *Kifayat al-Usul*;
- Hajj Husayn Burujerdi, leader of the Islamic seminary of Qum,
- Allamah Sayyid Muhammad Husayn Tabatabai, author of the Quranic exegesis *al-Mizan fi Tafsir al-*

Qur'an; and

–Allamah Sayyid Sharafiddin Amuli, author of *al-Muraja'at*.

Jurisprudence in the Najaf Seminary

Jurisprudence in the Najaf Seminary²⁹

Jurisprudence was amongst the sciences taught in Najaf and from its inception, the subject of focus amongst students via Shaykh Tusi. Until recent years, it was called the Science of Jurisprudence. Like other sciences, the science of jurisprudence underwent the process of development. After putting behind its introductory stages of narrated jurisprudence, it reached its highest level of accuracy – comparative and demonstrative jurisprudence – as well as the use of rules of deduction (*istinbat*) for extracting religious laws from firsthand sources.

Although the Najaf seminary undertook periods of excellence in recounting and reporting, as well as periods of decline in the science of jurisprudence, comparative and demonstrative jurisprudence, and *ijtihad*, after the decline with the presence of *usuli* scholars, it returned to its previous station in comparative jurisprudence³⁰ and the science of jurisprudence. The seminary was able to present the great and well-known scholars of the Shi'a world.

We owe the turning point in comparative jurisprudence and *ijtihad* in the Najaf seminaries to the hard work of the prominent scholar Shaykh Ansari.³¹ With his innovative outlook in the principles of *ijtihad*, he made great changes in the science of jurisprudence; and with reviving principles of jurisprudence and its foundation; he was able to use it for deducing various branches and religious laws. Through this method, he brought Shi'a laws to a whole new stage. From amongst his works are two books, *Fara'id al-Usul* (known as Articles in the Science of Jurisprudence) and *Makasib* (a legal manual of Islamic Commercial Law) which have been taught in the seminaries for years. Ansari's intellectual ideas in Shi'a law were then developed by his outstanding students, some of whom were Mirza Shirazi, Mirza Rushti, Ayatullah Kuh Kamari, and Akhund Khorasani. With introducing debatable topics in reasoning in the creation of new rules of *fiqh* and placing them in a new and innovated framework, Akhund Khorasani wrote *Kafayatul al- Usul*, which is used until this day as a seminary textbook.

The evolution and development of the science of jurisprudence after Akhund Khorasani continued through great intellectuals such as Shaykh Muhammad Husayn Isfahani, Ayatollah Agha Diya al-Din Iraqi and with Allamah Na'eni's insightful thinking and scrutiny, the depth of topics and content related to reasoning in new *fiqh* rules (*usuli*) increased and its status in Shi'a *ijtihad* and jurisprudence showed itself more than ever.

The composition of two very valuable books, with comprehensiveness regarding religious jurisprudential matter was another remarkable service of the Najaf Seminaries. One is *Urwa al-Wuthqa* by Ayatullah Sayyid Kadhim Yazdi³² and the other *Wasilah al-Nijat* by Ayatullah Sayyid al-Hasan Isfahani.³³ With

3,260 jurisprudential issues, *Urwa al-Wuthqa* became a reference book in jurisprudence.

Prominent jurists used its methods in writing legal books, and its fundamental legal topics are discussed in advanced jurisprudential studies (*dars al-kharij al-fiqh*) to such a point that today many commentaries and interpretations have been written on it. Moreover, *Wasilah al-Nijat*, which contained most of the Islamic legal issues necessary for Muslims at the time, because of the skillful text it became the foundation of many jurisprudential books afterwards and many of the collections of juridical edicts (*risalah*) are written as a form of commentary on it.

Currently, the Islamic seminaries of Najaf continue to shine and have introduced judicial personalities and supreme legal authorities (*maraji'*) such as Ayatullah Sayyid Muhsin Hakim,^{[34](#)} Ayatullah Sayyid Abul Ghasim Khoei,^{[35](#)} and Ayatullah Sayyid Ali Sistani.^{[36](#)}

Philosophy in the Seminary of Najaf

The appearance of philosophy and the spread of philosophical ideology in the Islamic seminaries of Najaf – and Iraq in general – are due to the migration of great scholars from Iran. This was structured around Islamic philosophy from long before. Khajah Nasr al-Din Tusi's^{[37](#)} trips to Baghdad between the years 662 to 672 A.H. and his meetings with Iraqi scholars set the grounds where intellectual ideas were spread in Iraq.^{[38](#)}

However, the widespread familiarization of the Najaf seminaries with philosophy was the migration of Akhund Mulla Husayngholi Hamedani to the holy Shi'a sites of Iraq, and his studies and instructions in the seminary of Karbala and Najaf. He himself benefited from Mulla Hadi Sabzevari's^{[39](#)} classes in the seminary and made his own students familiar with Islamic philosophy, in which he found his perfect form in Mulla Sadra's Transcendent Theosophy (*al-Hikmah al-Muta'liyah*). He also promoted transmitted knowledge (*ulum naqli*) alongside intellectual knowledge (*ulum aqli*) and made efforts to spread it within the seminaries. Sayyid Jamal al-Din Asadabadi, Sayyid Abd al-Husayn Lari, and Sayyid Ahmad Karbala'ei have all been trained in the Najaf seminary.

Other philosophy teachers in Najaf include Agha Mirza Muhammad Baqir Istahbanati, Shaykh Muhammad Husayn Gharuri Isfahani, Agha Shaykh Ali Muhammad Najaf Abadi, Agha Sayyid Husayn Badkoobei, Allamah Sayyid Muhammad Husayn Tabatabai, and Shaykh Murtadha Taleqani, Allamah Muhammad Taqi Ja'fari's teacher.

The next part of this series continues with information on the Islamic Seminary of Hillah – including its revival of *ijtihad* and its prominent scholars – and the Kadhimayn Seminary.

¹. Shi'a Encyclopedia, under Bahaoddin Khorramshahi and others, vol. 6, p. 549.

². Kabari, Sayyed Ali Reza, Shi'a Seminaries across the World.

³. Encyclopedia of Shi'a, vol. 6, p. 346–344.

⁴. For example, we can refer to Bukhari, the author of one of the six books of Sunni Islam, where in his memoir it mentions he would travel to various regions for long periods of time in search of narrations. On one of his trips he went to Basra,

where during his fifteen-day stay he recorded over fifteen thousand narrations. Ibn Abi Ya'li, *Layers of Hanbalis*, vol. 1, p. 276.

5. *Shi'a Seminaries across the World*, p. 203.

6. *Ibid*, p. 203.

7. Hakim Mulla Sadra Shirazi, passed away in the city of Basra in the year 1050 when traveling bare foot on a trip to hajj for the seventh time. Mokhtari, Reza, *Visage of Scholars* (Simayeh Farzanehgan), p. 164.

8. Tehrani, Aghabozorg, *al-Shia 'Alam Tabaqat*, vol. 5, p. 83.

9. *Shi'a Seminaries across the World*, p. 205.

10. Atardi, Azizullah, *Musnad of Imam al-Kadhim*, vol. 3, p. 569.

11. Al-e Buye, Iranian Shi'a dynasty, attributed to Abushoja' who between the years 322-448 Qamari ruled a large part of Iran, Iraq, and the peninsula until the northern borders of Damascus. Sajjadi, Sadiq, "Al-e Buye", *Islamic Encyclopedia*, vol. 1, article 377.

12. Ibn 'Imad Hanbali, *Shadhrat al-Dhahab fi Akhbar man Dhahaba*, vol. 2, pp. 199-200.

13. *Ibid*.

14. Ibn Abu al-Hadid, in his description of the Peak of Eloquence (*Nahjul Balagha*), he quotes from Sayyid Abdul Karim bin Tawoos Fakhar Musawi, that one night in his sleep, Shaykh Mufid sees Hadhrat Zahra (as) who brought her two sons, Imam Hasan (as) and Imam Husayn (as), and said to teach them the science of jurisprudence (*ilm-e fiqh*) and Islamic commandments (*ahkam*). They day after, as usual, Shaykh Mufid was busy teaching at Buratha Mosque when he noticed a woman enter the mosque with the utmost dignity, holding the hand of two children. She came up to him and said, "I am Tahir Dhu al- Manaqib's wife and these two children (Sayyid Radi and Sayyid Murtadha) are my sons. I have come to you so that you may teach them the science of jurisprudence and Islamic commandments. And it was through this means that Shaykh Mufid enthusiastically accepted to teach and educate them, till those two brothers became the greatest minds and the most famous scholars of their time. Ibn Abu al-Hadid, *Description of the Peak of Eloquence*, vol. 1, p. 41.

15. *Usul al-Arba'ma'ah* is a series of 400 works which has been written by the companions of the infallibles in various fields such as, belief (*itiqad*), jurisprudence, exegesis, ethics and other. After the time of presence of the Imams, the authors of the Four Books started recording them in their books.

16. Died 329 A.H.

17. Died 381 A.H.

18. Shaykh Saduq, *Man la Yahduruhu al-Faqih*, vol. 1, p. 2.

19. In the introduction to *Man la Yahduruhu al-Faqih*, Shaykh Saduq writes: "I set my goal in writing this book, to narrate those set of sayings that I am certain of their authenticity in being from the infallibles (as) and to be able to give a ruling and judgment on them and I believe these narrations and this deed will act as evidence between me and my Almighty God." *Ibid*.

20. Sayyid Bahr al-Ulum writes the following in regards to the book *Man la Yahduruhu al-Faqih*: "This book is one of the four books which based on its authenticity and popularity is excellent and distinguished and some of the great scholars prefer its narrations over the other four books. Some of the reasons why this work is preferred over others is because Shaykh Saduq was a hafiz and a recorder and that this work came after Shaykh Kulayni's book." Bahr al-Ulum, Sayyid Mahdi, *al-Fawaed al-Rijaliyyah, Muktabaya al-Alamin al-Tusi wa Bahr al-Ulum*, vol. 3, p.299-300.

21. 385-460 A.H.

22. Tusi, Muhammad bin Hasan, *Tahdhib al-Ahkam*, vol. 1, p. 2-3.

23. R.K. Faqihi, Ali Asqar, *Al-e Buyah, First Shia Dynasty*, p. 472.

24. Date of death: 826 A.H.

25. Date of death: 993 A.H.

26. Shaykh Thani's son.

27. *Islamic Shi'a Seminaries*, p. 290.

28. 1155/1154-1212 A.H.

29. The book *Shi'a Seminaries across the World* was used extensively in writing this part.

30. The method deriving legal laws.

[31.](#) Born 1214 A.H. in Dezful; died 1281 A.H. in Najaf.

[32.](#) 1247–1338 A.H.

[33.](#) 1277–1365 A.H.

[34.](#) 1264–1390 A.H.

[35.](#) 1317–1413 A.H.

[36.](#) Born 1349 A.H.

[37.](#) 598–672 A.H.

[38.](#) Allamah Hilli was one of Khajah Nasr al-Din Tusi's students who participated in his philosophy classes and in return Khajah would participate in his jurisprudence classes. When getting his certification (ijazah) he says the following about his teacher to ibn Zuhra: Khajah Nasr al-Din Tusi was the most superior scholar of our time and had many compilations in intellectual and traditional sciences. He was the most noble of the people we have the honor of knowing, make God brighten his shrine. In his presence I read al-Hayat, Shafa-e ibn Sina, and tazkirehee dar hayat, which were that great scholars written works. Then after he parted this world and may God bless his soul. Murtazavipour, Akbar, The Biography of Iranian and World Mathematicians.

[39.](#) Of the most popular hakims and philosophers of the thirteenth century and of the commentators of Mull Sadra Shirazi's written works and idea and his most important work meaning his book Mandhumah is a summary of the book Asfar written Mulla Sadra.

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